

Introduction:

Types of information privacy

- Personal health information (PHI)
- Personally identifiable information (PII)
 - SSN/ID numbers
 - Names
 - Birthdays

Privacy dimensions

What is protected:

- There are more than just data privacy like bodily or book

Dimensions Overlap

- Person + place:
 - Bodily, spatial, decisional associational
- Information + activity
 - Communication, intellectual

Data types

- Direct identifiers
 - Names, student ID
- Indirect or linkable identifiers
 - Device ID, IP addressed, location pattern
- Activity
 - Clicks, purchases
- Inferences
 - Predicted health, interests, identity

Sensitives Vs Non-sensitive PII

- Sensitive:
 - What doctor you visited
 - Your SSN
 - Database of phone numbers used for 2fa
 - Could this information be used to expose a person to harm, power, or unwanted judgement
- Non-sensitive
 - Phonenumber
 - Name
 - address

Note: really depends on the context. Different states and different law will define it differently

Week 2: Data timeline

Third Amendment: forbids the government from forcing citizens to house soldiers in their private homes during peacetime without their consent

Fourth Amendment (prob gonna have a couple questions on the midterm):

- “Each man's home is his castle”
Protect people from unreasonable searches and seizures by the government
 - Such as “stop and frisk”

Fifth Amendment

- Miranda rights
- You cannot be compelled to testify incriminating information about yourself!
 - Privacy of thoughts
 - General idea of privacy to not reveal incriminating information about yourself
 - You are not compelled to give your password if arrested because you have the right to incriminate yourself

The Census

Census Act of 1879

- Census began in 1790, and kept asking more and more personal questions (including questions about diseases and disabilities)
- Census results were posted in public places for “error checking”
- This act made the results confidential, and were no longer posted publicly

1919 second war powers act

- Override Census privacy provisions - Government wanted to find people of Japanese descent to put them into the internment camps
- Repealed 1947

1952 title 44 section 1208b

- 1942- Census information confidentiality is maintained by the Census Bureau, but records eventually belong to the national archives
- Census records are public 72 years (72 years because that was the average lifespan back then) after collection except for the legal heir named on the report
 - For research purposes originally 50 years after under the 1950 federal records act
 - Currently, data from the 1950s is the most recent census information publicly available

Colonial mail problems

- Sealing letters was difficult

- Postal clerks and workers would read letters before delivering them
- People had to write in code to get some semblance of privacy

1825 title 18 section 1702

- Obstruction of correspondence

Abigail law where her picture was not consented to be on a newspaper and she tried to sue but it failed but a law was passed after this case

Wiretapping is legal

There is a law that forces data breaches to be publicly known